

IN THE COUNTY COURT OF DOUGLAS COUNTY, NEBRASKA

(Enter the type of court)

(Enter the county name)

STATE OF NEBRASKA _____, Case No. CR 14-1187
Plaintiff,

vs.

Marcus Deshawn Whitfield _____, **MOTION TO SEAL AN
ADULT CRIMINAL RECORD**
(your full name) Defendant.

I am the defendant in the above-listed case.

I request this court enter an Order sealing the criminal record of this case.

I am stating the following facts in support of this Motion:

1. I was charged with
Count I: Theft by Unlawful Taking, \$500 or less, Neb. Rev. Stat. 28-511(1), a Class II
misdemeanor; Count II: Criminal Mischief, 28-519(4) _____ on
(Crime(s) Charged)

March 3, 2014 _____
(Date of charge(s))

2. All charges against me in this matter (select one):
☒ Were dismissed;
☐ Resulted in an acquittal;
☐ Resulted in a conviction that was later pardoned; or
☐ Resulted in a conviction that was later set aside because I was a
victim of sex trafficking.
3. The information related to the charge(s) listed above still appears in the
public record.

I request that the court enter an Order sealing my above conviction.

Signature: _____ Date: _____

Printed Name: Marcus Deshawn Whitfield

Street Address/P.O. Box: 3417 South 42nd Street

City/State/ZIP Code: Omaha, NE 68105

Telephone Number: 402-555-0148

*Email address: marcus.whitfield@example.org

*[Nebraska Supreme Court Rule § 2-208](#) requires individuals who are not attorneys and representing themselves to provide their email address. The court will use the email address to send notices from the court about this case **except** for items that require another type of service as directed by statute or Nebraska Supreme Court Rule.

If you no longer have email capability or if your email or other contact information changes, you must complete a [Change of Contact Information Form](#).

☐ By checking this box, I am letting the court know that I do not have the ability to receive emails. The reason I cannot receive email is: _____

IN THE COUNTY COURT OF DOUGLAS COUNTY, NEBRASKA

(Enter the type of court)

(Enter the county name)

STATE OF NEBRASKA

Case No. CR 14-1187

Plaintiff,

vs.

**MOTION TO SEAL RECORD
DUE TO ACQUITTAL OR
DISMISSAL**

Marcus Deshawn Whitfield

Defendant.

I, Marcus Deshawn Whitfield, am the defendant in this case.

Charges in this case were filed, but the case was dismissed by the court:

- ☒ on the motion of the prosecuting attorney;
☐ as a result of a hearing that is not the subject of a pending appeal;
☐ after acquittal;
☐ after a deferred judgment; or
☐ after completion of a program prescribed by a ☐ drug court
☐ problem solving court.

I am requesting that pursuant to [Neb. Rev. Stat. § 29-3523\(7\)](#), the court issue an order that all records, including any information or other data concerning any proceedings relating to the above-entitled case, including the arrest, taking into custody, petition, complaint, indictment, information, trial, hearing, adjudication, correctional supervision, dismissal or other disposition or sentence, be sealed.

Signature: _____ Date: _____

Printed Name: Marcus Deshawn Whitfield

Street Address/P.O. Box: 3417 South 42nd Street

City/State/ZIP Code: Omaha, NE 68105

Telephone Number: 402-555-0148

Email address: marcus.whitfield@example.org

COMPLETING THE MOTION TO SEAL AN ADULT CRIMINAL RECORD

You will need to know: your case number, the county where the charge was filed, whether it was filed in county court or district court, the date of the charge, the offense you were charged with, and the outcome of the charge (dismissed or acquitted.)

You can get a copy of your criminal history through the [Nebraska State Patrol](#) (There is a small charge to get your record.), do a [one-time court case search](#) of Nebraska Court records. (There is a small charge to get your record, but it may not be a complete record.), or by going to the courthouse and using the public access terminal to get information on your record. There will be a charge for copies provided to you by the court.

NOTE: Only check the box for “Resulted in a conviction that was later set aside” if the conviction was set aside because you were a victim of sex trafficking.

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Choose the court and the county using the drop-down lists.

Enter the original case number.

Enter your name exactly as it was listed on the original case.

List the date of these charge(s).

Check the box that correctly completes the statement.

List the charge(s) in this case.

IN THE _____ COURT OF _____ COUNTY, NEBRASKA
Choose the court Choose the court

STATE OF NEBRASKA Case No. _____
Plaintiff,

vs. _____
(your full name) Defendant.

**MOTION TO SEAL AN
ADULT CRIMINAL RECORD**

I am the defendant in the above-listed case.

I request this court enter an Order sealing the criminal record of this case.

I am stating the following facts in support of this Motion:

1. I was charged with _____ on _____
(Crime(s) Charged) (Date of charge(s))

2. All charges against me in this matter (select one):
☐ Were dismissed;
☐ Resulted in an acquittal;
☐ Resulted in a conviction that was later pardoned; or
☐ Resulted in a conviction that was later set aside because I was a victim of sex trafficking.

3. The information related to the charge(s) listed above still appears in the public record.

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**Read this
statement carefully.**

If you **CANNOT**
receive emails, check
the box, and use the
lines to explain why
you can't.

I request that the court enter an Order sealing my above conviction.

Signature: _____ Date: _____

Printed Name: _____

Street Address/P.O. Box: _____

City/State/ZIP Code: _____

Telephone Number: _____

*Email address: _____

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Sign the form, and
enter your printed
name, the date
signed, your address,
telephone number,
and your email
address (if you can
receive emails).